

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related: CGC-21-594102)

**[PROPOSED] ORDER GRANTING
LEAVE (SAC / TAC)
— TIER 1 AND TIER 2 DISPOSITION**

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

FRANCISCUS DYLAN ROSARIO,
Plaintiff,

v.

CSAA INSURANCE EXCHANGE; CARBONE, SMITH & KOYAMA, LLP; MICHAEL R.

CHAMBERS (State Bar No. 132394); PHILLIPS, SPALLAS & ANGSTADT, LLP; PRIYA D. NAVARATNASINGHAM (State Bar No. 252686); ALBERTO REYNA (State Bar No. 347323); DOES 1-20,

Defendants.

Case No. CGC-25-631801

Underlying Action: Rosario v. Abdelhalim, Case No. CGC-21-594102

ORDER

The Motion of Plaintiff FRANCISCUS DYLAN ROSARIO for Leave to File Second Amended Complaint, as supplemented by Plaintiff's Notice of Supplemental Allegations and Errata, having come on regularly for hearing on **May 6, 2026**, at **9:00 a.m.**, in Department **301** of the above-entitled Court, the Honorable **Garrett L. Wong** presiding;

Plaintiff appearing in pro per; Defendants appearing through counsel of record;

The Court having considered the moving papers, Plaintiff's Notice of Supplemental Allegations and Errata, any opposition, any reply, the arguments of the parties, and the file in this action;

GOOD CAUSE APPEARING THEREFOR,

TIER 1 — PRIMARY DISPOSITION (SECOND AMENDED COMPLAINT)

IT IS HEREBY ORDERED that:

1. Plaintiff's Motion for Leave to File Second Amended Complaint (filed April 21, 2026; heard May 6, 2026), as supplemented, is **GRANTED**.
2. The Revised Proposed Second Amended Complaint lodged with Plaintiff's Notice of Supplemental Allegations and Errata is deemed **FILED** as of the date of this Order.
3. Plaintiff shall **SERVE** the Second Amended Complaint on all parties within **ten (10) days** of the date of this Order.
4. Defendants shall have **thirty (30) days** from the date of service of the Second Amended Complaint to respond thereto.
5. Defendants' Motion to Strike the First Amended Complaint (set May 22, 2026) is hereby

TAKEN OFF CALENDAR as moot.

TIER 2 — ALTERNATIVE SELF-EXECUTING DISPOSITION (THIRD AMENDED COMPLAINT)

IN THE ALTERNATIVE, if Tier 1 is **DENIED** in whole, or the Court finds that the Second Amended Complaint does not cure the defects raised in Defendants' Motion to Strike:

6. Plaintiff's Motion for Leave to File Third Amended Complaint (the TAC-RESPONSE packet on file in this action) is hereby **GRANTED** in the same Order without further motion practice.
7. Upon such denial of Tier 1, the Third Amended Complaint in the form lodged at 801-MOTION-STRIKE-APR-2 is deemed **FILED** as of the date of this Order.
8. Service and response deadlines per paragraphs 3–4 shall apply mutatis mutandis to the Third Amended Complaint.
9. Defendants' Motion to Strike is **TAKEN OFF CALENDAR** as moot regardless of whether Tier 1 or Tier 2 applies.

IT IS SO ORDERED.

Dated: _____

HON. GARRETT L. WONG

Judge of the Superior Court

Submitted by:

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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